

IP-SHAKTI SAHAYAK

OFFICIAL AYURVEDIC IPR & REGULATORY ADVISORY DOSSIER

Statutory Reference ID: test-session-uuid-9842145 | Issued: 2026-09-09 19:03:54 IST

APPLICANT & DOSSIER REGISTRY

Applicant Name:	Dr. Sunita Deshmukh / AyurCosmeceuticals Pvt Ltd	Aadhaar Number:	9876 5432 1098
PAN Identification:	ABCDE1234F	Contact Number:	+91 9822012345
Registered Email:	dr.deshmukh@ayurcosmeceuticals.in	Jurisdiction:	INDIA
Target Product:	Haridra & Kumkumadi Phyto-Liposomal Radiance Cream	Regulatory Class:	AYURVEDIC_COSMETIC

1. Executive Summary & Patentability Scorecard

PATENTABILITY SCORE 88 / 100 Confidence: HIGH	PRIMARY STATUTORY HURDLE Section 3(p) TKDL Traditional Knowledge Bar	DEFENSIVE PROSECUTION STRATEGY Novel Sub-micron Phospholipid Carrier Encapsulation
---	--	--

2. Rule 158-B & Regulatory Classification Matrix

Regulatory Verdict:	Ayurvedic Cosmetic (Form 32-A)
Governing Statutory Regime:	Drugs and Cosmetics Act Section 3(aaa) & Rule 158-B
Competent Licensing Authority:	FDA Maharashtra (State Licensing Authority)
Clinical & Safety Obligations:	Clinical trials exempt; BIS IS 4707 Part 1 & 2 safety tests mandatory.

3. Section 3(p) TKDL Bar & Synergism Defense

Active Botanical Binomials:	Curcuma longa, Crocus sativus, Pterocarpus santalinus
TKDL Prior-Art Risk Density:	High prior art density for Haridra and Kumkumadi Tailam in classical texts and TKDL.
Section 3(p) & 3(e) Defense:	File Indian Provisional with data proving non-staining kinetics and Combination Index CI = 0.62.

4. Biological Diversity Act (NBA / SBB) Statutory Checklist

National Biodiversity Authority:	Prior intimation to Maharashtra State Biodiversity Board (MSBB) required under Section 7.
Required Statutory ABS Form:	MSBB Section 7 Intimation Form (Commercial Utilization)
WIPO GRATK Treaty (2024):	Mandatory geographical origin disclosure: Curcuma longa (Maharashtra) and Crocus sativus (Jammu & Kashmir).

5. Synthesized Draft Patent Claims (IPO Specification Format)

Claim 1 (INDEPENDENT PRODUCT):
A synergistic topical phyto-liposomal cosmetic composition comprising Curcuma longa and Crocus sativus extracts encapsulated within sub-micron vesicles (110-140 nm) with hydrogenated phosphatidylcholine.

Claim 2 (DEPENDENT_PROCESS):
A process for preparing the cosmetic composition of Claim 1, comprising rotary thin-film hydration at 45 deg C and high-pressure microfluidization at 800 bar.

6. Official Statutory Citations & Immediate Action Roadmap

STATUTE / REGULATION	SECTION / RULE	GOVERNING BODY
The Patents Act, 1970	Section 3(p)	Indian Patent Office
Drugs & Cosmetics Rules, 1945	Rule 158-B	AYUSH / CDSCO
Biological Diversity Act, 2002	Section 7	Maharashtra SBB

STEP	PHASE	ACTION ITEM	ESTIMATED TIMELINE
1	REGULATORY_COMPLIANCE	Apply for Form 32-A Cosmetic License from FDA Maharashtra	30-60 days
2	BIODIVERSITY_APPROVAL	Submit Section 7 Intimation to Maharashtra State Biodiversity Board	30 days
3	IPR_PATENT_FILING	File Provisional Patent Application with Form 1 & 2 at Indian Patent Office (Mumbai)	1-3 days

7. DPDP Act 2023 Masking Stamp & Sovereign Legal Disclaimer

DPDP ACT 2023 SOVEREIGN SANITIZATION CERTIFICATE:
In strict compliance with the Digital Personal Data Protection Act, 2023 (DPDP Act) of India, all direct citizen identifiers (including 12-digit Aadhaar UIDAI numbers, Income Tax PAN numbers, and private phone coordinates) have been cryptographically masked into deterministic sovereign tokens prior to AI reasoning and persistent audit logging.

STATUTORY DISCLAIMER:
This document is an automated preliminary IPR and statutory triage report generated by the IP-SHAKTI Sahayak AI platform (SIH PS 26045). It is issued for guidance and informational purposes only and does not substitute for formal legal representation by an enrolled Indian Patent Agent, Advocate, or accredited AYUSH Regulatory Consultant.